

M/s S.M.R. Ispat Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 August 2025 · Writ-C No. 31746 of 2012 · **Writ dismissed as not pressed**

HEADNOTE

A writ challenging PVVNL's additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed as not pressed. In 2012 the Court had connected the petition with a similar pending writ and, without prejudice, restrained the licensee from demanding additional security; the validity of the clause 4.20 demand was never decided.

FACTUAL SUMMARY

M/s S.M.R. Ispat Pvt. Ltd. challenged PVVNL's demand notice dated 8 May 2012 seeking additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 4 July 2012 the Court connected the writ with Writ-C No. 51884 of 2009 and, following an interim order dated 7 October 2009 in a similar petition by M/s Supreme Ceramics Limited (Writ Petition No. 51844 of 2009), restrained demand of additional security until further orders. On 1 August 2025 the petitioner declined to press the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security deposit

HOLDING

The writ challenging the licensee's additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed as not pressed. An earlier Division Bench (R.K. Agrawal and Mushaffey Ahmad, JJ., 4 July 2012) had, without prejudice to the parties' rights, restrained the respondents from demanding additional security until further orders while connecting the matter with Writ-C No. 51884 of 2009; that interim did not decide the demand.

¶ 4.7.2012, 1.8.2025

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY WAS LEVIABLE UNDER CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition dismissed as not pressed; the 2012 restraint was without prejudice and did not adjudicate the demand.